

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JOSEPH DELGROSSO,

Plaintiff,

Index #

Date Purchased:

- against -

SUMMONS

SUSAN T. MCCANN, CITY OF NEW YORK,
DETECTIVE DAVID BEUTEL, POLICE
OFFICER REVELIO FERNANDEZ, and
DETECTIVE THOMAS MCLAUGHLIN,

Defendants.

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SUMMONS

Plaintiff designates New York County as the place of trial. The basis of venue is the the Plaintiff's residence as well New York County being the location where the incident commenced, with venue pursuant to CPLR 504(3).

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action and to serve a copy of your Answer; or, if the Verified Complaint is not served with this Summons, to serve a Notice of Appearance, on the plaintiff's attorney within 20 days after the service of this Summons with Notice, exclusive of this day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
June 17, 2014

Yours, etc.,

Tumelty & Spier, LLP
Attorneys for Plaintiff
160 Broadway-Suite 708

New York, New York 10038
(212) 566-4681

Plaintiff's residence:

JOSEPH DELGROSSO
333 East 23rd Street, Apt 2LL
New York, New York 10010

Defendants' addresses:

SUSAN T. MCCANN
213 South 3rd Street, 4th Floor
Brooklyn, New York 11211

CITY OF NEW YORK
C/O Corporation Counsel
100 Church Street
New York, New York 10007

DETECTIVE DAVID BEUTEL
c/o 114th Precinct
2416 Astoria Boulevard South
Astoria, New York 11103

POLICE OFFICER EVELIO FERNANDEZ
c/o 114th Precinct
2416 Astoria Boulevard South
Astoria, New York 11103

DETECTIVE THOMAS MCLAUGHLIN
c/o 114th Precinct
2416 Astoria Boulevard South
Astoria, New York 11103

NOTICE: The nature of this action is for VIOLATION OF FEDERAL AND STATE
CONSTITUTIONAL RIGHTS; CLAIMS UNDER 42 U.S.C. § 1983 and §1988;
false arrest, unlawful imprisonment, malicious prosecution, intentional infliction of

emotional distress, assault, battery, libel, slander, defamation and other causes of action.

The relief sought is monetary damages in excess of the jurisdictional limits of all lower Courts.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JOSEPH DELGROSSO,

Plaintiff,

- against -

INDEX #:

VERIFIED
COMPLAINT.

SUSAN T. MCCANN, CITY OF NEW YORK,
DETECTIVE DAVID BEUTEL, DETECTIVE
EVELIO FERNANDEZ, and DETECTIVE
THOMAS MCLAUGHLIN,

Defendants.

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Plaintiff complaining of the defendants by his attorneys, Tumelty & Spier, LLP,
hereby allege, upon information and belief, as follows:

PREAMBLE

1. This is an action to redress the deprivation by the defendants of the rights secured to the plaintiff by the Constitution and Laws of the United States and the State of New York.
2. These claims are brought pursuant to Sections 1983 and 1988 of Title 42, United States Code, and other State and Federal Statutes.
3. A valid Notice of Claim regarding the claims herein was filed with the City of New York on or about October 21, 2013 within ninety (90) days of the accrual of the claims.
4. The Plaintiff appeared and was questioned by representatives of the Defendant City of New York at Hearings pursuant to General Municipal Law section 50-H which were held on April 1, 2014.

5. More than ninety days has elapsed since the filing of the Notice of Claim and the Defendant City of New York has not settled or adjudicated this claim.

6. This action is being commenced within one year and ninety days of the accrual of the action.

THE PARTIES

7. Plaintiff JOSEPH DELGROSSO was and still is an adult resident of New York County, City and State of New York.

8. Defendant SUSAN T. MCCANN (hereafter "MCCANN") is an adult resident of Kings County, City and State of New York.

9. The defendant CITY OF NEW YORK was and still is a municipal corporation duly organized under the laws of the State of New York.

10. The defendant DETECTIVE DAVID BEUTEL, Tax identification # 914926 (hereafter " DET. BEUTEL") assigned to the 114th police precinct, was and is an adult resident of the State of New York.

11. At all relevant times hereinafter mentioned, the defendant DET. BEUTEL was and is an employee of the defendant CITY OF NEW YORK.

12. That at all times hereinafter mentioned, defendant DET. BEUTEL was acting within the scope of his employment and in the furtherance of his duties with defendant CITY OF NEW YORK.

13. Defendant DET. BEUTEL is sued herein only in his individual capacity.

14. At all times hereinafter mentioned, defendant DET. BEUTEL was acting under color of law, to wit: the laws of the State of New York and City of New York.

15. The defendant POLICE OFFICER EVELIO FERNANDEZ, Tax identification # 937795 (hereafter “ P.O. FERNANDEZ”) assigned to the 114th police precinct, was and is an adult resident of the State of New York.

16. At all relevant times hereinafter mentioned, the defendant P.O. FERNANDEZ was and is an employee of the defendant CITY OF NEW YORK.

17. That at all times hereinafter mentioned, defendant P.O. FERNANDEZ was acting within the scope of his employment and in the furtherance of his duties with defendant CITY OF NEW YORK.

18. Defendant P.O. FERNANDEZ is sued herein only in his individual capacity.

19. At all times hereinafter mentioned, defendant P.O. FERNANDEZ was acting under color of law, to wit: the laws of the State of New York and City of New York.

20. The defendant DETECTIVE THOMAS MCLAUGHLIN, (hereafter “ DET. MCLAUGHLIN”) assigned to the 114th police precinct, was and is an adult resident of the State of New York.

21. At all relevant times hereinafter mentioned, the defendant DET. MCLAUGHLIN was and is an employee of the defendant CITY OF NEW YORK.

22. That at all times hereinafter mentioned, defendant DET. MCLAUGHLIN was acting within the scope of his employment and in the furtherance of his duties with defendant CITY OF NEW YORK.

23. Defendant DET. MCLAUGHLIN is sued herein only in his individual capacity.

24. At all times hereinafter mentioned, defendant DET. MCLAUGHLIN was acting under color of law, to wit: the laws of the State of New York and City of New York.

**AS AND FOR A FIRST CAUSE OF ACTION FOR UNLAWFUL SEIZURE/ FALSE
ARREST.**

25. On March 23, 2012 , at approximately 5:00 am., commencing at 333 East 23rd Street, Manhattan, New York 11103 and continuing at other locations, the 114th Precinct, located at 34-16 Astoria Boulevard, Queens, New York, and Queens County Criminal Court, the individual defendant police personnel and other members of the New York City Police Department arrested, detained, seized and arrested plaintiff, JOSEPH DELGROSSO unlawfully and without probable cause or legal justification.

26. Defendant police officers and detectives DET. BEUTEL, P.O. FERNANDEZ AND DET MCLAUGHLIN (hereafter collectively “ Defendant Police Personnel”) and other members of the New York City Police Department intended to arrest, detain, and seize the plaintiff JOSEPH DELGROSSO.

27. At the time of the arrest, detention and seizure of the Plaintiff on March 23, 2012 there was no warrant of arrest outstanding for the Plaintiff.

28. The arrest, detention and seizure of plaintiff by the individual defendant police personnel was unlawful.

29. The arrest, detention and seizure of plaintiff by the other members of the New York City Police Department was unlawful.

30. There was no probable cause to arrest, detain, or seize the plaintiff.

31. There was no legal justification or excuse for the arrest, detention or seizure of the plaintiff.

32. Each defendant knew or would have known using reasonable diligence that that there was no probable cause to arrest the plaintiff.

33. The plaintiff was aware and conscious of his seizure, confinement, detention, and arrest.

34. The plaintiff did not consent to the arrest, detention, or seizure of his person by defendants.

35. During the course of the arrest and subsequent events, the defendants assaulted, and battered Plaintiff JOSEPH DELGROSSO (UNAUTHORIZED TOUCHING).

36. That Plaintiff remained incarcerated on Rikers Island and other NYC Department of Correction facilities through July 24, 2013 on the charges made by Defendants.

37. During the course of the detention, confinement and arrest of the Plaintiff the Defendants caused emotional and consequential damages to the Plaintiff.

38. As the result of the foregoing, Plaintiff feared for his personal safety, was deprived of his liberty, subjected to scorn, ridicule, and embarrassment, suffered from shock and personal injuries, damages and were prevented from performing his usual and customary duties.

39. The acts of the aforesaid defendants violated the rights granted to plaintiff pursuant to the Fourth and Fourteenth Amendments to the United States Constitution. As such, plaintiffs seek relief pursuant to 42 U.S.C. ' 1983.

40. The acts of the aforesaid defendants violated the rights granted to the plaintiffs pursuant to Article 1, §12 of the New York State Constitution. As such, plaintiff seeks

relief against the defendants, including the City of New York, pursuant to *Brown v. State*, 89 N.Y.2d 172 (1996).

41. That due to the above the Plaintiff sustained damages that exceed the jurisdictional limits of all lower courts.

42. That due to the above Plaintiff seeks punitive damages in an amount to be determined by the trier of fact.

**AS AND FOR A SECOND CAUSE OF ACTION FOR INTENTIONAL INFLICTION
OF EMOTIONAL DISTRESS AGAINST SUSAN T. MCCANN**

43. Plaintiff repeats and reiterates the preceding paragraphs as if fully set forth herein.

44. On or about and before March 22, 2012 and March 23, 2012 defendant MCCANN made false charges against other persons, including Plaintiff, to members of the New York City Police Department.

45. That defendant MCCANN persisted in requesting that Plaintiff be arrested, and instigated, directed and caused Plaintiff to be arrested on the false charges which arrest took place on March 23, 2012.

46. That reasonably prudent police officers would have determined that there was no reasonable cause to believe that Plaintiff had committed the crimes alleged.

47. That reasonably prudent police officers, with the information at hand at the time of Plaintiff's arrest, including the glaring inconsistencies and improbabilities of Defendant MCCANN allegations, the psychiatric history and drug abuse history, and prior false reports by Defendant MCCANN, as well as the conflicting medical evidence, would not have arrested Plaintiff on the allegations being made by Defendant MCCANN.

48. That Defendant MCCANN abused lawful process by instigating the arrest of Plaintiff with the intent to cause emotional distress to Plaintiff.

49. That defendant MCCANN conduct was willful, malicious and intentional and done with the purpose of causing severe emotional distress and/ or with recklessness, toward Plaintiff, in a manner so shocking and outrageous that it exceeds all reasonable bounds of decency which resulted in severe emotional distress to Plaintiff.

50. That due to the above the Plaintiff sustained damages that exceed the jurisdictional limits of all lower courts.

51. That due to the above Plaintiff seeks compensatory and punitive damages in an amount to be determined by the trier of fact.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST CITY OF NEW YORK.

52. Plaintiff repeats and reiterates the preceding paragraphs as if fully set forth herein.

53. The acts of the individual defendant police personnel violated the rights granted to the plaintiffs pursuant to Article 1, §12 of the New York State Constitution. As such, plaintiffs seek relief pursuant to *Brown v. State*, 89 N.Y.2d 172 (1996).

54. That due to the above the Plaintiff sustained damages that exceed the jurisdictional limits of all lower courts.

55. That due to the above Plaintiff seeks punitive damages in an amount to be determined by the trier of fact.

AS AND FOR A FOURTH CAUSE OF ACTION FOR ASSAULT AND BATTERY.

56. Plaintiff repeats and re-alleges the preceding paragraphs as if fully set forth herein.

57. As set forth above, the Defendant Police Personnel and other members of the New York City Police Department intentionally attempted to and did cause harmful and offensive physical contacts with the Plaintiff during his detention and arrest resulting in damages to Plaintiff.

58. That due to the above the Plaintiff sustained damages that exceed the jurisdictional limits of all lower courts.

59. That due to the above Plaintiff seeks compensatory and punitive damages in an amount to be determined by the trier of fact.

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**AS AND FOR A FIFTH CAUSE OF ACTION FOR LIBEL/ SLANDER AND
DEFAMATION.**

60. Plaintiff repeats and reiterates the preceding paragraphs as if fully set forth herein.

61. That the defendant MCCANN did make false statements and allegations that Plaintiff had thrown acid at Plaintiff, that Plaintiff “had disfigured (Defendant MCCANN)”, that Plaintiff “had tried to kill (Defendant MCCANN)”, all of which statements were known to be false, and made maliciously,

62. That said statements were false.

63. That defendant MCCANN s knew said statements to be false when made.

64. That said statements were made with malice.

65. That Plaintiffs sustained damages, including but not limited to loss of freedom, reputation, humiliation, embarrassment and anxiety and fear of further incarceration and false charges being made.

66. That due to the above Plaintiff seeks compensatory and punitive damages in an amount to be determined by the trier of fact.

AS AND FOR A SEVENTH CAUSE OF ACTION AGAISNT DEFENDANT MCCANN
FOR INTENTIONAL INTEFERENCE WITH THE PERSON- OUTRAGEOUS
CONDUCT CAUSING EMOTIONAL DISTRESS.

67. Plaintiff repeats and re-alleges the preceding paragraphs as if fully set forth.

68. The conduct by Defendant MCCANN in intentionally bringing false charges, maliciously prosecuting the charges, and causing Plaintiff to be unjustifiably incarcerated, is so shocking and outrageous that it exceeds all bounds of decency.

69. That Plaintiff remained incarcerated on these false and spurious charges from the date of arrest, March 23, 2012 through July 24, 2013.

70. That Plaintiff sustained damages from the intentional tortuous conduct of Defendant MCCANN.

71. That Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts.

72. That due to the above Plaintiff seeks compensatory and punitive damages in an amount to be determined by the trier of fact.

AS AND FOR AN EIGHTH CAUSE OF ACTION FOR VIOLATION OF
CONSTITUTIONAL RIGHTS 28 USC § 1983.

73. Plaintiff repeats and reiterates the preceding paragraphs as if fully set forth.

74. The Individual police officers acted under color of state law.

75. The conduct of the Individual Defendant Police Officers deprived Plaintiff of rights protected by the Constitution of the United States, including those rights against unreasonable seizures under the Fourth Amendment and Fourteenth Amendments.

76. That Plaintiff sustained damages due to the violation of his constitutional rights.

77. That Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts.

78. That due to the above Plaintiff seeks compensatory and punitive damages in an amount to be determined by the trier of fact.

AS AND FOR AN NINTH CAUSE OF ACTION FOR VIOLATION OF NEW YORK
STATE CONSTITUTIONAL RIGHTS ARTICLE 1 § 12.

79. Plaintiff repeats and reiterates the preceding paragraphs as if fully set forth.

80. The Individual defendant police personnel acted under color of state law.

81. The conduct of the Individual Defendant Police Personnel deprived Plaintiff of rights protected by the Constitution of the State of New York.

82. That Plaintiff sustained damages due to the violation of his constitutional rights.

83. That due to the above Plaintiff seeks compensatory and punitive damages in an amount to be determined by the trier of fact.

**AS AND FOR A TENTH CAUSE OF ACTION AGAINST DEFENDANT CITY OF
NEW YORK FOR VIOLATION OF UNITED STATES CONSTITUTIONAL RIGHTS
28 U.S.C. 1983, AS WELL NEW YORK STATE CONSTITUTIONAL RIGHTS ARTICLE**

1, § 12.

84. Plaintiff repeats and reiterates the preceding paragraphs as if fully set forth.

85. That the acts of the Individual Police Defendants was undertaken pursuant to an official policy and governmental custom.

86. The Defendant CITY OF NEW YORK caused promulgated created and implemented a custom and practice that caused and permitted Plaintiff to be denied his constitutional rights as set forth above.

87. That Defendant CITY OF NEW YORK was deliberately indifferent in training its employees and that this policy was the proximate cause of the violation of the Plaintiff's Constitutional rights.

88. That the Defendant CITY OF NEW YORK implemented or executed policy statements, ordinances, regulations, and/ or decisions which decisions were officially adopted and promulgated by the City's officers.

89. That due to the above Plaintiff sustained damages.

90. That Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION.**

91. Plaintiff repeats and reiterates the preceding paragraphs as if fully set forth.

92. That the filing of charges and continued prosecution of Plaintiff by Defendants was done intentionally and with malice.

93. That the Defendants knew or should have known that there was no probable cause to believe that Plaintiff committed any of the acts and crimes charged.

94. That the prosecution of the criminal action against Plaintiff was done with malice and with reckless disregard for the truth.

95. That the Plaintiff was tried on these false charges.

96. That the criminal action against Plaintiff was terminated in Plaintiff's favor by a verdict of not guilty on July 24, 2013, after a jury trial.

97. That Plaintiff remained incarcerated throughout the arrest and throughout the trial, a period well in excess of one year.

98. That due to the above Plaintiff seeks compensatory and punitive damages in an amount to be determined by the trier of fact.

99. That Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR AN TWELFTH CAUSE OF ACTION FOR FALSE ARREST AGAINST
DEFENDANT MCCANN.

100. Plaintiff repeats and reiterates the preceding paragraphs as if fully set forth.

101. That the police report, filing of charges and continued prosecution of Plaintiff by Defendants was done intentionally and with malice by Defendant MCCANN.

102. That due to the above Plaintiff seeks compensatory and punitive damages in an amount to be determined by the trier of fact.

103. That Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts.

ARTICLE 16 IS INAPPLICABLE TO INSTANT ACTION

104. The provisions of Article 16 to the CPLR of the State of New York do not apply to the instant action.

105. The individual police personnel defendants acted with intent.

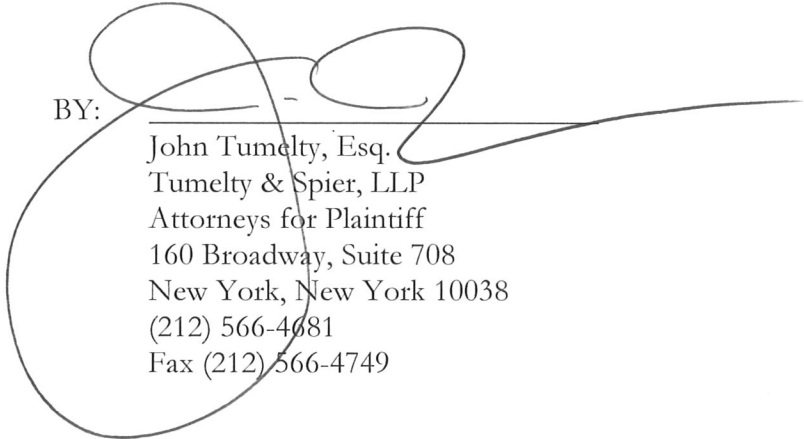
106. The individual police personnel defendants acted knowingly or intentionally, jointly, in concert, and in a conspiracy to "cover-up" the unlawful acts of the co-defendants and to otherwise deprive plaintiffs of due process of law, to cause the acts or failures upon which liability is based.

WHEREFORE, plaintiffs demand judgment against the defendants as follows:

(i) Compensatory damages in an amount that is just, reasonable, and fair;

- (ii) Punitive damages, against the individual defendants, in an amount that is just, reasonable, and fair;
- (iii) Attorneys' fees and the costs of this action;
- (iv) Such other relief as is fair, just, or equitable.

Dated: New York, New York
June 17, 2014

BY: 

John Tumelty, Esq.
Tumelty & Spier, LLP
Attorneys for Plaintiff
160 Broadway, Suite 708
New York, New York 10038
(212) 566-4681
Fax (212) 566-4749

VERIFICATION

STATE OF NEW YORK :)
COUNTY OF NEW YORK :)

JOSEPH DELGROSSO, BEING DULY SWORN DEPOSES AND STATES:

I am the Plaintiff in the above captioned action and I have read the foregoing complaint and I know the contents are true as alleged, upon my own knowledge, or if based upon information and belief, as to those matters, I believe them to be true.

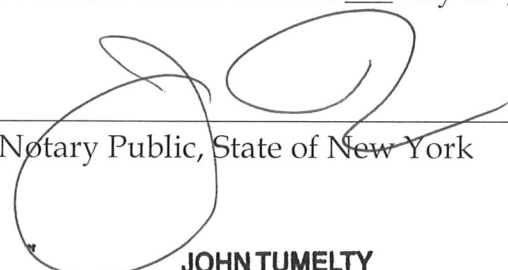
I affirm that the foregoing statements are true under the penalties of perjury.

Dated: June 26, 2014
New York, New York



JOSEPH DELGROSSO

Sworn to before me this 26 day of June, 2014



Notary Public, State of New York

JOHN TUMELTY
Notary Public, State of New York
No. 02TU6136642
Qualified in Queens County
Commission Expires Nov. 14, 2017